

25STCV23962 25STCV23962

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-28

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Case Number: 25STCV23962 Hearing Date: July 28, 2026 Dept: 731

[TENTATIVE] ORDER RE: MOTION

TO DEPOSIT FUNDS IN INTERPLEADER AND PROPOSED ORDER

Moving Party: Plaintiff, Downtown LA Law Group LLP

Opposing Party: None [non-opposition filed by Defendant Law Offices of Ramin Younessi]

Notice: OK

This action involves a dispute over right to portions of the attorneys' fees obtained pursuant to a resolved civil litigation brought by Chanda Kellogg (the "underlying action"), in which action Ms. Kellogg was first represented by Defendant Law Offices of Ramin Younessi before changing representation to Plaintiff Downtown LA Law Group LLP.

Before the Court is Downtown LA Law Group LLP's motion for an order authorizing Plaintiff to deposit the sum of \$128,810.68 into the registry of the Court pursuant to Code of Civil Procedure section 386 and granting such other and further relief as the Court deems proper.

Defendant Law Offices of Ramin

Younessi filed a notice of non-opposition to the motion on July 15, 2026.

The motion cannot be considered on the merits because Plaintiff has failed to establish proper notice. Code of Civil Procedure section 386 requires that notice of a motion seeking leave to

deposit disputed funds into the court registry be served all claimants to the funds. Chanda Kellogg is a named defendant and a claimant to the disputed attorney's fees, yet she does not appear among the recipients identified on the proof of service accompanying the motion. Accordingly, the Court cannot conclude that Ms. Kellogg received the notice required by statute or was afforded an opportunity to oppose the requested relief.

Rather than deny the motion, however, the Court CONTINUES the motion for hearing at 8:30 A.M. on September 10, 2026, so that Downtown LA Law Group LLP can comply with notice requirements for its motion and Defendant Chanda Kellogg is afforded an opportunity to respond.

Plaintiff Downtown LA Law Group LLP is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.